

25LBCV01320 25LBCV01320

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-18

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Background Facts

Plaintiff, Hector Soto filed this action against Defendant, American Honda Motor Company, Inc. for damages arising out of alleged violations of Song-Beverly. The case is set for trial on 8/24/26.

Motion to Quash (#1)

Plaintiff served a notice to appear on Honda, demanding Honda produce Michelle Jongkind, Jeff Chang, Steven Bailey, and Michael V. Tyrrell for appearance at trial. As Honda correctly notes in moving papers, a notice to appear can only be used to require an officer, director, or managing agent of Honda to appear. See CCP §1987(b). Honda provides evidence that the individuals whose appearance is sought by way of the subpoena are not Honda's officers, directors, and/or managing agents, and therefore, in light of the lack of opposition, the motion to quash is granted.

Motion to Quash (#2)

Plaintiff served a subpoena on Diamond Valley Honda, demanding that its custodian of records and person most qualified appear at trial. Honda moves to quash the subpoena, contending (a) a subpoena for trial appearance cannot be directed at a custodian of records or PMQ; it must be directed at an individual, who must be personally served with the subpoena, (b) Diamond Valley's PMQ lacks relevant evidence, and (c) the affidavit served with the subpoena does not establish good cause for the production sought.

CCP §1987(a) requires the party propounding the trial subpoena to personally serve it on the witness being ordered to appear at trial. Plaintiff necessarily failed to do so, as Plaintiff seeks only to have the PMQ appear at trial. In the absence of opposition, the motion to quash is granted.

Sanctions

CCP §1987.2 authorizes sanctions if a subpoena is propounded without good cause or substantial justification. The Court has previously granted similar motions to quash with Plaintiff's attorney acting as opposing counsel, and therefore Plaintiff's attorney is aware that serving these types of subpoenas are not authorized. The Court therefore finds imposition of sanctions appropriate.

Honda seeks sanctions in the amount of \$1500/motion (the notices of motion seek sanctions in the amounts of \$1500 and \$2500, but the declarations both seek sanctions in the amount of \$1500). Honda's attorney's declarations establish fees well in excess of the amount sought have been incurred.

The Court reviewed Honda's notices of motion, however, and they fail to comply with CCP §2023.040, which requires Honda to identify each person, party, and/or attorney against whom sanctions are sought. The Court has repeatedly denied Honda's requests for sanctions due to this failure, and the Court denies the request again at this time.

Conclusion

The motions to quash are granted. Despite the appropriateness of sanctions, sanctions are not imposed due to Honda's failure to properly notice its requests for sanctions.

Honda is ordered to give notice.